

California Estate Planning Checklist

Use this checklist to identify gaps in your estate plan. Work through each section and note any item you cannot check.

■ Companion to Video 1: Estate Planning 101 — BayLegal YouTube Channel

SECTION 1 — YOUR WILL

- ☐ I have a current, signed will executed under California law.
- ☐ My will names an executor (personal representative) I trust.
- ☐ My will names a guardian for my minor children (if applicable).
- ☐ My will has been reviewed or updated within the last three years.
- ☐ My will is stored somewhere my executor can find it.

Recommended: fireproof safe, attorney's office, or registered with the county.

SECTION 2 — YOUR REVOCABLE LIVING TRUST

- ☐ I have a signed, executed revocable living trust.
- ☐ I am named as the trustee of my own trust.
You manage your trust assets exactly as you do today.
- ☐ I have named a successor trustee to step in at death or incapacity.
- ☐ My California real property is titled in the name of my trust.
Critical: an unfunded trust does nothing. Verify the grant deed reflects trust ownership.
- ☐ My brokerage and investment accounts name the trust as beneficiary or owner.
- ☐ My bank accounts are updated to reflect trust ownership or POD designation.
- ☐ My trust has been reviewed for Prop 19 compliance.
Parent-child transfers require correct trust structure to minimize reassessment exposure.
- ☐ My trust has been reviewed or updated within the last three years.

SECTION 3 — YOUR DURABLE POWER OF ATTORNEY

- ☐ I have a signed durable power of attorney executed under California law.

- ☐ My POA specifically authorizes real estate and banking transactions.
Generic language is frequently rejected by California financial institutions.
- ☐ My POA names an agent I trust to manage my financial affairs.
- ☐ My POA names a successor agent as a backup.
- ☐ If I manage 1031 exchanges: my POA includes 1031 exchange authority.
The 45-day ID window does not pause for incapacity. Your agent must be authorized to act.
- ☐ If I hold property in an LLC: my POA authorizes my agent to act as member/manager.
- ☐ My POA has been reviewed or updated within the last three years.

SECTION 4 — YOUR ADVANCE HEALTHCARE DIRECTIVE

- ☐ I have a signed advance healthcare directive (AHCD) under California law.
- ☐ My AHCD names a healthcare agent to make medical decisions on my behalf.
- ☐ My AHCD documents my wishes on life-sustaining treatment and end-of-life care.
- ☐ My healthcare agent knows where to find my AHCD.
Consider providing copies to your physician, your healthcare agent, and your hospital.
- ☐ My AHCD has been reviewed or updated within the last three years.

SECTION 5 — COORDINATION AND CURRENCY

- ☐ All four documents are consistent with each other and reflect my current wishes.
- ☐ My documents reflect any major life changes in the last three years.
Marriage, divorce, birth of children, death of a named agent or beneficiary, major asset changes.
- ☐ My attorney has reviewed my complete estate plan as a coordinated package.
- ☐ My family knows where my documents are stored and who to contact.

Any unchecked item above represents a gap in your estate plan. The more gaps you find, the more urgent a review becomes.

Ready to close your gaps?

Schedule a consultation at BayLegal.com or call us at (650) 240-2800

BayLegal, PC
667 Lytton Ave Suite 3
Palo Alto, CA 94301
BayLegal.com

This checklist is for informational purposes only and does not constitute legal advice. For advice specific to your situation, consult a licensed California attorney.
© BayLegal, PC. All rights reserved.